

M/s Meher Chandra Sewal Das Rice Mill v. State of U.P.

Allahabad High Court · Division Bench · 25 March 2019 · Writ - C No. 9102 of 2019 · **Writ disposed; relegated to CGRF under clause 7.10.**

HEADNOTE

A writ against an order on a representation regarding electricity dues was disposed of. The High Court held that the petitioner has a remedy before the Consumer Grievance Redressal Forum under clause 7.10 of the Electricity Supply Code, 2005, and observed that if such an application is moved the Forum shall consider and decide it as far as possible within one month.

FACTUAL SUMMARY

The petitioners, a rice mill and another, filed a writ in the Allahabad High Court against an order dated 13 November 2018 passed on their representation concerning electricity dues. They sought relief against the State of Uttar Pradesh and the electricity authorities. Counsel for the Electricity Department appeared and stated that the Consumer Grievance Redressal Forum was functional. The Court did not examine the dues or the representation order on the merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

cgrf-remedy-for-order-on-dues-representation

HOLDING

Against an order passed on a representation regarding electricity dues, the consumer has a remedy of applying to the Consumer Grievance Redressal Forum under clause 7.10 of the Electricity Supply Code, 2005. The writ was disposed of with the observation that if such an application is moved, the Forum — which counsel for the Electricity Department stated is functional — shall consider and decide it as far as possible within one month. ¶ 1

FLAG Court said 'Rules 7.10' of the Supply Code and also 'Rule 7 of the Electricity Rules, 2005'; the CGRF route in the Code is clause 7.10. The Rule 7 citation is ambiguous and was not applied separately.

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances A challenge to an order on a representation about electricity dues was treated as a dues grievance for which clause 7.10 supplies the Forum route, and the writ was not entertained on the merits. ¶ 1

consumer-grievance-redressal-forum-remedy-clause-7.10 The petition was disposed of because clause 7.10 affords a remedy before the Consumer Grievance Redressal Forum, which counsel for the Electricity Department confirmed was functional, with a one-month decision observation if an application is moved. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY DUES AND OF THE ORDER DATED 13.11.2018 ON THE PETITIONER'S REPRESENTATION

Writ disposed solely by pointing to the CGRF remedy under clause 7.10. ¶ 1

